

DISCIPLINARY PROCEDURES FOR STUDENTS WITH DISABILITIES

A. Purpose.

The purpose of this regulation is to establish procedures, consistent with applicable law, for the discipline of students with disabilities.

B. General.

School personnel shall, on a case-by-case basis, consider any unique circumstances or harmful effects when deciding whether or not to discipline a student with a disability that violates a code of student conduct, as set forth in the *Student Rights and Responsibilities* handbook. In considering disciplinary consequences for a violation of the *Student Rights and Responsibilities*, school personnel should review the child's Individualized Education Program (IEP), any Section 504 Plan, and any behavioral intervention plan (BIP), and, if applicable, consult with the child's special education teacher(s) to provide further guidance in considering any unique circumstances or harmful effects related to the incident.

C. In-School Disciplinary Measures.

School personnel are authorized to use in-school disciplinary measures in accordance with [Policy 8215](#) (In-School Disciplinary Measures). A student's IEP, Section 504 Plan, and/or BIP will be reviewed to ensure all accommodations and necessary support services are in place to allow the student to access any assigned work.

D. Exclusion from Extracurricular Activities.

School personnel are authorized to use exclusion from extra-curricular activities in accordance with [Policy 8210](#) and [Policy 8215](#).

E. Short-Term Suspension.

A short-term suspension is a suspension of 10 consecutive days or less at a time. School personnel are authorized to use short-term suspension in accordance with [Policy 8220](#). The Director of Special Education shall be notified of all suspensions of disabled students.

School authorities may remove a student with a disability from the student's current educational setting for 10 school days cumulative in a school year to the extent that such removals would be applied to students without disabilities and for additional short-term suspensions during the school year provided no pattern exists (see Section H below). Short-term suspensions which constitute a pattern will be handled through long-term removal procedures.

No Manifestation Determination Review (MDR) or IEP meeting is required for a short-term removal, although an IEP meeting may be held if needed.

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F. Manifestation Determination Review.

When a disciplinary action is proposed that will result in a disciplinary change of placement, an MDR shall be conducted within 10 school days after the date on which the decision to take disciplinary action is made. This review shall be conducted by the MDR Team, which consists of a local educational agency representative, the parent(s) and relevant members of the IEP team (as determined by the parent and the School Division).

The Manifestation Team may determine that the behavior of the student was not a manifestation of such child's disability, only if the Team:

1. Considers all relevant information in the student's file, including the student's IEP, any teacher observations, and any relevant information supplied by the parents; and
2. Determines that:
 - a. The conduct in question was not caused by, or did not have a direct and substantial relationship to, the student's disability; and
 - b. The conduct in question was not the direct result of the School Division's failure to implement the IEP.

G. Disciplinary Action Following an MDR Determination That There Is No Manifestation.

If the behavior is not a manifestation of the student's disability, the disciplinary procedures will be applied in the same manner as applied to students without disabilities. The student must continue to receive the educational services necessary to enable the student to continue to participate in the general curriculum, although in another setting, and to progress toward meeting the goals set out in the student's IEP. In addition, the special education and disciplinary records of the student must be made available to the person who makes the final decision regarding the imposition of discipline.

A parent may request an expedited due process hearing if the parent disagrees with the determination that the behavior was not a manifestation of the student's disability or if the parent disagrees with any decision regarding the placement of the student while disciplined. During any appeal, the student will remain in the interim alternative education setting unless reversed by decision of the hearing officer; provided, however, the student may still serve the balance of any applicable forty-five school day removal. The placement may also be changed through the IEP process with the consent of the parent.

H. Disciplinary Action Following MDR Determination that there is a Manifestation.

A student with a disability whose behavior is determined to be a manifestation of the student's disability may not be disciplined, except to the extent a removal is otherwise

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permitted by law. The student may be removed to a more restrictive placement by following change in placement procedures through the IEP process. The IEP team must conduct or review a Functional Behavioral Assessment (FBA) and/or BIP as provided in Section N of this regulation.

I. Interim Alternative Educational Settings for Weapons, Drugs and Infliction of Serious Bodily Injury.

Students with disabilities who: 1) carry or possess a weapon to or at school, or on school premises, or to or at a school function under the jurisdiction of a state or local educational agency; 2) knowingly possess or use illegal drugs or sell or solicit the sale of a controlled substance, while at school, on school premises, or at a school function under the jurisdiction of a state or local educational agency; or 3) inflict serious bodily injury upon another person at school, on school premises, or at a school function under the jurisdiction of a state or local educational agency may be disciplined pursuant to applicable School Board policies and may be placed in an interim alternative educational setting for up to forty-five school days. These options are available even if a manifestation exists. If no manifestation is found, the student may be disciplined to the extent a student without disabilities would be disciplined.

Weapons, controlled substance and serious bodily injury have the meaning given under state regulations in 8 VAC 20-81-10.

Any interim alternative educational setting shall be selected by the IEP team to enable the student to continue to progress in the general curriculum, although in another setting, and to progress toward meeting the goals set out in the student's IEP. The student must also receive, as appropriate, an FBA, behavioral intervention services, and modifications designed to address the behavior so it does not recur.

J. Change of Placement by Hearing Officer.

In addition to the other options for removal, a hearing officer through an expedited due process hearing requested by the School Division, may order a change in the placement for a student with a disability to an appropriate interim alternative educational setting for not more than 45 school days if the hearing officer determines that maintaining the current placement of such student is substantially likely to result in injury to the student or others. Additional 45-school day removals may be authorized by the hearing officer as appropriate.

K. Placement During Appeals.

During the course of any appeals, the student's placement shall be in accordance with the provisions of state and federal law unless the parent and the School Division agree otherwise. Students with disabilities are also entitled to the due process rights available to a non-disabled student who is subject to discipline. In addition, students with disabilities are entitled to the due process procedures available under the Individuals with Disabilities

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Education Act (IDEA), as amended, and any applicable state procedures.

L. Students Not Yet Identified as Disabled.

Students for whom the parents assert there is a disability but who have not yet been identified as disabled may be subjected to the same measures applied to students without disabilities if the School Division did not have knowledge of the disability before the behavior that precipitated the disciplinary action occurred. LCPS will be found to have knowledge of the student's disability if, before the behavior that precipitated the disciplinary action occurred, one of the following occurred:

1. The parent expressed concern in writing to supervisory or administrative personnel of the School Division, or to a teacher of the student, that the student is in need of special education and related services;
2. The parent requested an evaluation of the student for special education eligibility; or
3. The student's teacher or other school personnel expressed specific concerns about a pattern of behavior demonstrated by the student directly to the director of special education or to other supervisory personnel of the School Division that suggests the presence of a disability.

LCPS would not be found to have knowledge of a student's disability if the parents refused to allow an evaluation of the student or refused special education services; or the student was evaluated and found not eligible for special education services.

If a request for an initial evaluation is made during the period a student is subject to disciplinary measures, the evaluation shall be conducted in an expedited manner. If the student is found eligible as a student with a disability, taking into consideration information from the evaluation conducted by the School Division and information provided by the parents, then the student must be provided special education and related services, although in another setting. Pending the results of the evaluation, the student shall remain in the educational placement determined by the school authorities which placement can include suspension or expulsion without services.

M. Involuntary Transfer, Long-Term Suspension, and Expulsion.

Any principal who considers recommending to the Superintendent long-term suspension, involuntary transfer for adjustment purposes, or expulsion of a student with a disability shall convene an MDR to determine whether or not there is a manifestation between the child's disability and the misconduct that led to the recommendation. This determination must be made by the MDR committee pursuant to the change of placement procedures. If there is a manifestation or if the child was inappropriately placed at the time of the misconduct, the child may not be expelled. If there is no manifestation determination or if the child was appropriately placed at the time of the misconduct, the child may be disciplined in the same

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manner as a non-disabled child.

N. Functional Behavioral Assessments and Behavior Intervention Plans.

1. If the MDR team members determine that a manifestation exists, the IEP team must:

- a. Conduct an FBA and implement a BIP, if no FBA has previously been conducted.
- b. If the student already has an FBA and a BIP in place, review and modify the BIP as necessary to address the behavior.

If a manifestation is found, the School Division and parents may still agree to a change in placement that is made through the IEP process. Otherwise, the student must return to the placement from which the student was removed. Nothing in this section limits the authority of LCPS for the first 10 days of removal in a school year or for applicable 45-school day removals.

2. If the MDR team members determine that there is no manifestation, then the IEP team should decide whether there is a need to conduct or review an FBA and BIP.

O. Long-Term Suspensions, Expulsions or Short-Term Suspensions Which Constitute a Pattern are Long Term Removals and Considered a Disciplinary Change in Placement.

For the purpose of removing students with disabilities from their current educational placements, a disciplinary change in placement occurs when:

1. The removal is for more than 10 consecutive school days at a time; or
2. Pattern Analysis: There is a series of removals during the school year, each of which is for 10 days or less and they cumulate to more than 10 days in a school year and constitute a pattern because of:
 - a. The length of each removal;
 - b. The proximity of the removals to each other;
 - c. The total time the student is removed; and
 - d. The child's behavior is substantially similar to the child's behavior in the series of removals for previous incidents in the school year.

P. Procedures for Long-Term Suspension, Extended Long-Term Suspension, Expulsion, or Disciplinary Change in Placement.

Students with disabilities shall be entitled to the procedures outlined in Policy 8220 and Regulation 8220-1. This includes a hearing by the Superintendent's designee to

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determine long-term suspension, extended long-term suspension, expulsion or a disciplinary change in placement. If the disciplinary action will result in a long-term removal, the student's parents must be sent notice of the recommendation of discipline the same day as the decision is made for the disciplinary change in placement and must be provided with a copy of the procedural safeguards.

Q. Educational Services While Disciplined.

For the first 10 days of removal in a school year, the School Board is not required to provide educational services to a student with a disability if services are not provided to students without disabilities who have been similarly removed.

After the first 10 days of removal in a school year, the School Board shall provide educational services to the student during the period of removal. The services must enable the student to:

1. Continue to progress in the general curriculum, although in another setting; and
2. Make progress toward meeting the goals set out in the student's IEP.

The determination of the educational services is made by the IEP Team if the discipline constitutes a change in placement. For a short-term removal, which is not a change in placement, the determination of the education services is made by school personnel in consultation with the student's education teacher.

R. Reporting of Crimes.

Nothing in this regulation shall prevent the reporting of a crime to appropriate authorities or prevent state law enforcement and judicial authorities from exercising their responsibilities.

[Former Policy 5-55]
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Legal Ref: [8 VAC 20-81-10](#)

Cross Ref: [Policy 8215](#) In-School Disciplinary Measures, [Policy 8210](#) Introduction to Student Discipline, [Policy 8220](#) Student Suspension from School, [Regulation 8220-1](#), Procedures for Short-Term and Long-Term Suspension.